

ORIGINAL

(S E R V E D)
(FEBRUARY 8, 1993)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D. C.

February 8, 1993

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.

USE OF HOSTILE WITNESSES

The schedules in this proceeding have defined the parties' pre-hearing filings to include their direct case including "written testimony and work papers for all witnesses except hostile or rebuttal witnesses or with respect to redirect examination of any witnesses."

Sea-Land Service, Inc., believes that the schedules had consistently recognized that no written direct testimony had to be submitted for hostile witnesses; that this exception is simply a common sense recognition that hostile testimony cannot be reduced to written narrative testimony in advance of the hostile witness's appearance; that there is no

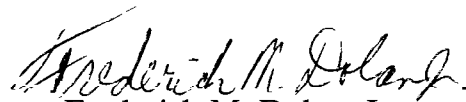
document in this proceeding that granted any of the parties dispensation from the requirement that the nature and content of the direct case, whether emanating from friendly or hostile witnesses, be identified and noticed to the opposite side; that to read the "written testimony" exception so broadly as to permit a substantial augmentation of the content of GovGuam's direct case following the completion of written direct case submissions does violence to the fair notice functions that were intended by the direct case filing requirement; and that for these reasons, GovGuam's efforts to expand its direct case through the use of hostile witnesses should be rebuffed. American President Lines supports Sea-Land's position although the issue is moot as to APL since complainants have decided not to call any APL hostile witnesses to testify substantively. The parties have known of this disagreement since the fall of 1992. GovGuam, as of January 1993, has identified 9 Sea-Land witnesses from whom it expects to elicit substantive testimony. Sea-Land states that their timely designation "might well have influenced the content of Sea-Land's responsive direct case submissions" and "prejudices Sea-Land's ability to formulate responsive direct case submissions." Obviously there is a misunderstanding among the parties. In the circumstances Respondents have not established their right to an order barring complainants from calling any hostile witnesses at the hearing.

Respondents will have ample time at the hearing to explore this matter further. The rights of all parties are assured to take any additional steps in the circumstances necessary to safeguard their due process rights.

It is ordered,

Respondents' request for an order confirming that direct case submissions are confined to matter contained and witnesses designated in previously scheduled submissions of the parties; that hostile witness designations by GovGuam after these submissions (18 March 1992, 31 August 1992 and Summary Judgment submissions incorporated by reference in those direct case submissions) should be rejected is denied.

Complainants have not waived their right, and all parties have the right, to use hostile witnesses as part of their direct and rebuttal cases.


Frederick M. Dolan, Jr.
Administrative Law Judge